Corvell. IMMIGRATION

TEMPORARY, SEASONAL LABOR

Running a compliant H-2B seasonal program

A plain-language walkthrough of the need test, the cap, and the recruitment DOL requires before a single worker arrives.



66,000
ANNUAL CAP, SPLIT BY HALF-YEAR

9 mo
MAXIMUM STAY PER PERIOD OF NEED

FOR HR & TALENT LEADERS

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START HERE

A visa for real, provable peaks — not year-round staffing.

H-2B lets an employer bring in temporary non-agricultural workers when the need for labor is genuinely temporary — a season, a one-time project, an intermittent surge — and no US workers are available to fill it.

4

WAYS TO PROVE TEMPORARY NEED

Seasonal, peakload, intermittent, or one-time occurrence. Pick the one that matches the actual business pattern.

2×

CAP WINDOWS PER YEAR

33,000 for the winter half (Oct–Mar), 33,000 for the summer half (Apr–Sep).

~3 mo

FILING WINDOW BEFORE THE START DATE

Recruitment and DOL certification are filed 75 to 90 days out — the standard window employers plan around.

WHAT'S IN THIS GUIDE

03	Proving the need is temporary	The four qualifying patterns
04	Labor certification & recruitment	The DOL stage, step by step
05	The season, mapped out	Timeline from filing to arrival
06	What it costs, and who pays	Fee breakdown
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ELIGIBILITY

Four patterns. The need has to fit one exactly.

Seasonal	Tied to a season of the year — landscaping in summer, a resort's high season — and recurring predictably each year. The most common basis for H-2B.
Peakload	A permanent staff exists, but temporarily needs help above normal levels — a processing plant during harvest, a retailer during the holidays.
Intermittent	No permanent staff for this work at all — need arises occasionally, without a predictable pattern, and is short each time it does.
One-time occurrence	A single, non-recurring event — a plant relocation, a storm-recovery project — that will not happen again. Rare, and heavily documented when used.

RULE OF THUMB

The period of need generally can't exceed nine months, and it has to repeat — or clearly end — on a predictable basis. A need that looks permanent, however it's labeled, won't qualify.

BUILDING THE CASE

Labor certification comes before USCIS ever sees the case.

Like PERM, H-2B needs DOL to certify that no US workers are available — but on a much tighter clock, tied to the season.

01

Prevailing wage & job order

75 DAYS BEFORE START · SWA

Wage is set, and a job order goes to the State Workforce Agency for the area of intended employment — it has to stay posted through 21 days before the start date.

02

File ETA-9142B

75–63 DAYS BEFORE START · DOL

The temporary labor certification application itself, with the job order and the recruitment report attached. DOL reviews for completeness before it moves further.

03

Additional recruitment

TWO PRINT ADS · 10 DAYS

Two Sunday newspaper ads in the area of intended employment, plus a state job-service listing. Every US applicant gets a documented, good-faith review.

04

Certification, then Form I-129

45 DAYS BEFORE START · USCIS

Once DOL certifies the number of workers needed, the petition goes to USCIS — subject to whichever half-year cap window is still open.

KEEP IN MIND

Even after certification, you must continue to accept qualified US applicants until 21 days before the workers' start date — recruitment isn't a one-time box to check.

TIMELINE

Everything is set against the start date.

Working backward from the day workers are needed, not forward from when you decide to file — the reverse of how most visa categories run.

Day −75

Job order posted

ETA-9142B filed the same window.

Day −60

Print ads run

Two Sunday postings, back to back.

Day −45

DOL certifies

I-129 filed with USCIS immediately.

Day −21

Recruitment obligation ends

Last point to accept US applicants.

Day 0

Workers start

Visa stamping abroad, if needed, precedes this.

~3 mo

FILING WINDOW BEFORE THE START DATE

2

CAP WINDOWS A YEAR TO PLAN AROUND

21 days

MINIMUM RECRUITMENT WINDOW BEFORE START

COSTS

What it costs, and who is allowed to pay it.

The rule that surprises employers most here: recruitment, transportation, and most fees must come from the employer — deducting them from an H-2B worker's wages is a common, and costly, violation.

ITEM	WHO PAYS	TYPICAL
Job order & print advertising	Employer	$500–$1,800
Temporary labor certification (ETA-9142B)	Employer	No fee
Form I-129 base filing fee	Employer	$780
H-2B supplemental fee	Employer	$150–$1,050
Fraud Prevention & Detection fee	Employer	$150
Inbound transportation & visa costs	Employer	Varies
Premium processing (optional)	Either	$1,015

Government fees current at publication and subject to change without notice. Return transportation home at the end of employment is also generally required for workers who complete the full period of need. Legal fees are quoted separately as a flat fee per season.

RISK AREAS

Five reasons certification gets denied.

Almost every denial we see traces back to one of these, and almost all of them are avoidable with earlier planning.

Need doesn't match the chosen basis

Calling a pattern "seasonal" when payroll records show near-constant staffing is the fastest way to a denial — DOL checks against your own history.

Filed outside the window

The 75-to-90-day filing window before the start date is fixed. File too early or too late and the application is rejected outright, no exceptions.

Recruitment steps out of order

Ads that run before the job order is approved, or that quote a different wage, restart the clock — sometimes past the cap window entirely.

Prior violations on file

An unresolved wage-and-hour finding, or a past corresponding-employment violation, can block certification until it's cleared up.

Cap reached before filing

The half-year cap fills fast, sometimes within days of opening. A case built on the right timeline but filed a week late can miss the window entirely and wait for the next half-year.

WORKING WITH CORVELL

You should never have to ask where a case stands.

One intake, then we drive

A single structured intake per season. After that we chase the job order, the ads, and the filing windows — not your operations team.

A dashboard, not a thread

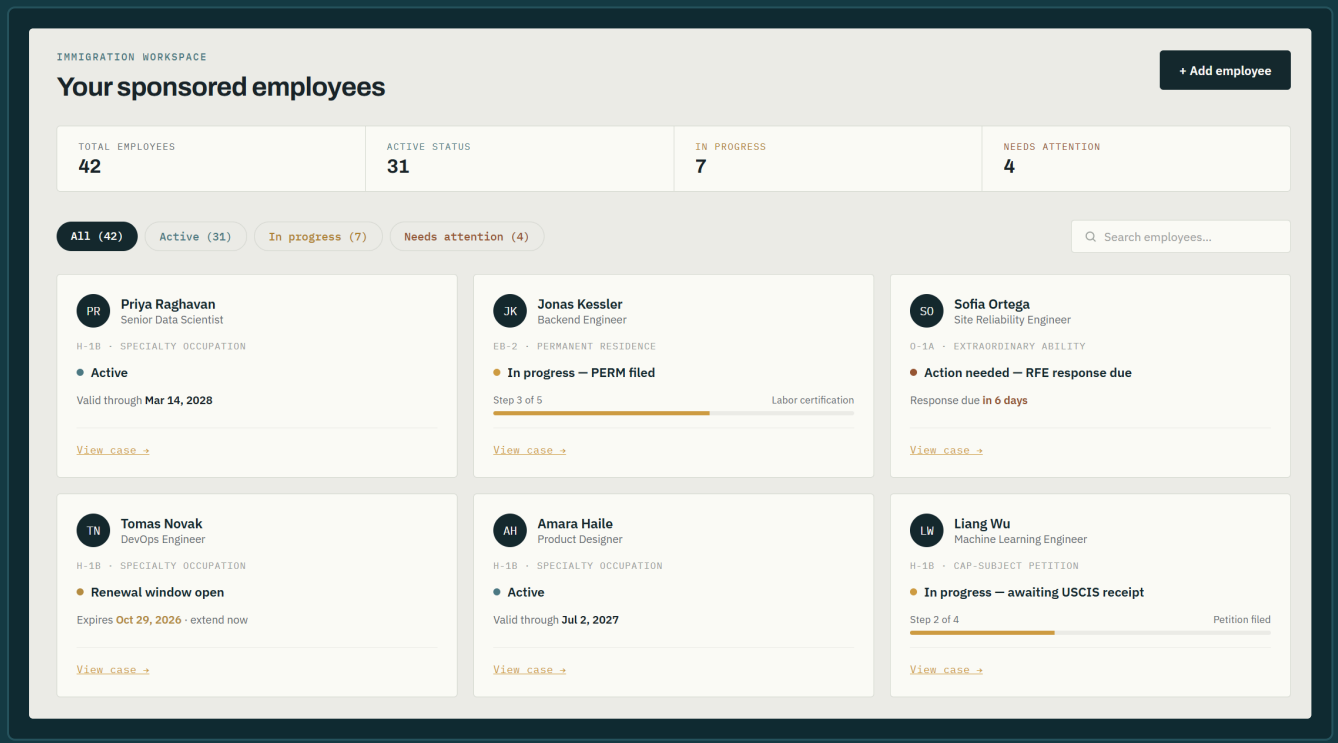
Every matter runs through auditable workflows with live status. No version-guessing, no buried email.

Flat fees, per season

Quoted before we start, 20–40% below conventional firms, with no junior-associate markups added on the way.

Planned around your calendar

We track the cap windows and file on your season's clock, so a filing deadline never depends on someone remembering the date.



NEXT STEP

Tell us your season. We'll build the calendar backward from your start date.

A 30-minute call is usually enough to confirm your need qualifies, and what has to happen before the cap window opens.

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